

File No.: EXP202306466

RESOLUTION OF

PROCEDURE OF WARNING

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 17, 2023, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent) and states the following:

While my son C.C.C. was showering after training at the facilities of (...), teammate D.D.D. took a photograph in which my son appears naked. Subsequently, D.D.D. sent this photograph via Instagram through direct message to a friend on Instagram, who responded with another photograph composed with that of my son.

The photograph captured by D.D.D. was also sent to another teammate who forwarded it to my son C.C.C.

The Instagram users mentioned are:

@***USER.1

@***USER.2

D.D.D. confirmed that he sent the photograph to a friend in the group that has the team of (...).

Along with the complaint, the following is submitted:

- Appearance report made before the Civil Guard in which the mother of the minor declares that the events occurred on 10/05/2023 between 20:45 and 21:15 and that they were known on 12/05/2023.

Regarding the possible authorship, she identifies B.B.B., a resident of ***LOCALITY.1 and under 14 years old, as well as other individuals who may have disseminated the photograph in question.

Regarding the possible development of the events, she states that her son, aged 12, informed her that on 10/05/2023 he received on his phone, ***PHONE.1, a photograph from the number ***PHONE.2, belonging to a friend of her son, E.E.E., who had received this photograph from another minor named B.B.B., whose phone number is unknown to her.

The photograph in question was of four minors, including her son, all depicted in profile and naked, and it was taken in the locker room of the football field ***LOCALITY.1 on May 10 after training. She states that all the minors play in the club ***CLUB.1.

The declarant states that she asked her son if the photograph was taken with his consent, and he told her no. She also asked about the author of the photograph, and he informed her that it was D.D.D.

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The declarant claims to know that the photograph had been disseminated via Instagram, with the option to view it only once, but that D.D.D. himself was the one who took the screenshot with the response from a minor after its dissemination; a screenshot that the declarant has obtained.

She expresses her desire for the photograph to cease being disseminated on social networks due to the harm it may cause her son.

She states that she is unaware if there are other photographs or videos of the minors naked and that the Instagram users who have accessed the photograph have been @***USER.2 and @***USER.1.

- Screenshot of the Instagram profile @***USER.2 in which the upper right corner shows the photograph of several naked minors in profile and the message "Ahhaha." The screenshot contains the following message "...").

- Screenshot of the Instagram profile @***USER.1

- Screenshot of the Instagram profile @***USER.2

- Document of legal notice and privacy policy of (...)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to (...) with NIF ***NIF.2, where the events occurred, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 19, 2023, as stated in the acknowledgment of receipt in the file. On June 14, 2023, a response letter was received by this Agency, in which (...) indicates the following:

- That a few days after the events that led to the complaint filed with the AEPD, we also became aware of the events that occurred within the locker room of the children's team ***CLUB.1, apparently after the training on May 10, 2023. Specifically, on May 12, 2023, the Board of Directors of the club ***CLUB.1 held an extraordinary and urgent meeting, where the facts were presented, and it was decided to suspend two players from training and matches with the team indefinitely until the facts are clarified. A copy of the minutes of the extraordinary meeting of the Board of Directors is provided as Annex 1.

- That as detailed in the facts that motivate the complaint, the images were taken inside the locker rooms by a minor from the team (...), with his own device, and subsequently published on some social network by himself, an act that, of course, falls outside the data protection security policies of ***CLUB.1, since they are taken.

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from the private and personal sphere of that person, since there are no club officials in the changing rooms.

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That the club, as can be seen in the attached photos as Annex 2, has informational signs, both on the notice boards and at the entrances to the changing rooms, stating that the USE OF MOBILE PHONES IN THE CHANGING ROOM IS PROHIBITED, warning that the club cannot be held responsible for images and videos that may be taken inside the changing room.

They provide the details of the parents/guardians of the alleged offender.

Along with the response to the information request sent by this Agency, the following is provided:

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As Annex 1, the minutes of the urgent and extraordinary meeting of the Board of Directors of ***CLUB.1 held on May 12, 2023, at 18:45, in which it was agreed to adopt the measure indicated in the first point of the response letter.

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As Annex 2, photographs of the informational signs that include the prohibition of the use of mobile devices in the changing rooms and contain the following message: "The club is not responsible for images and videos taken inside the changing room. It is the responsibility of everyone to use them properly. Thank you."

THIRD: On June 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complaining party was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware, in addition to the aspects already known after the response to the transfer of the complaint to (...), of the following:

The father of the minor who allegedly took the photograph indicates that the image was captured by his son B.B.B. He also states the following:

A photograph was taken.

It was sent to F.F.F. on Instagram @***USUARIO.2.

That photograph was deleted immediately.

At all times, information was provided about what happened and the concerned parents were informed.

There was no bad faith, and the 13-year-old minor was informed of the seriousness of the action.

The club has had him punished without playing or training since the incident.

FIFTH: On September 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party, for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 20, 2024, as stated in the acknowledgment of receipt in the file.

SEVENTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following to be proven facts in this procedure,

PROVEN FACTS

FIRST: On May 10, 2023, the complained party, B.B.B. with NIF ***NIF.1, a player of the ***CLUB.1 youth team, took a photograph with his mobile phone in which the images of four minors, all of whom are also players on the same football team, appear in profile and nude. Among the minors whose image was captured is the son of the complainant.

SECOND: According to the acknowledgment by the representative-parent of the complained party, only one photograph was taken—with the image of the minors described in the first proven fact—and it was sent, through the Instagram profile @***USUARIO.1, to F.F.F., holder of the Instagram profile @***USUARIO.2.

THIRD: The Instagram profile @***USUARIO.2 publishes a message in which the upper right corner features a photograph with the images of several minors in profile nude and the message Ahhaha and "(...)". The published image corresponds to the one taken by the complained party.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

According to Article 4.1 of the GDPR, "personal data" shall mean any information relating to an identified or identifiable natural person; an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the

physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person; Therefore, the physical image of a person is personal data, and its protection is the subject of this Regulation.

In turn, Article 4.2 of the GDPR defines the concept of "processing" of personal data as any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, comparison or interconnection, restriction, erasure, or destruction.

Thus, capturing the image of an identified or identifiable natural person constitutes processing of personal data within the meaning of the provisions of the GDPR.

Finally, it should be noted that paragraph 7 of the same provision defines the data controller as the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union law or the law of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by Union law or the law of the Member States.

Therefore, based on the facts described, in the case at hand, we are dealing with the processing of personal data whose purposes—in this case, the capture of the image and its subsequent transmission—and means—a mobile device that was available—have been determined by the responding party, which must therefore be identified as the controller in the terms outlined in the GDPR.

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III

Unfulfilled Obligation. Lawfulness of Processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, points c) and e), by more precisely establishing specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the data controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may

contain specific provisions to adapt the application of the rules of this Regulation, including: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other."

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specific situations of processing in accordance with Chapter IX. The Law of the Union or of the Member States shall pursue a public interest objective and shall be proportional to the legitimate aim pursued.

4. When the processing for a purpose other than that for which the personal data was collected is not based on the consent of the data subject or on the Law of the Union or of the Member States that constitutes a necessary and proportional measure in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data was initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data was collected and the purposes of the intended further processing;
- b) the context in which the personal data was collected, in particular with regard to the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data related to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

This provision ultimately aims to ensure that any processing of personal data has a legal basis that guarantees its lawfulness. Otherwise, we would be faced with a processing of personal data that could not be considered lawful as it would contravene the provisions of the applicable regulations on the protection of personal data.

It should be noted at this point that individuals have the power of disposition over their personal data, including their image, as well as over its dissemination, resulting, without a doubt, in the person whose personal data is captured and disseminated in violation of the legal order being deserving of protection.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that "the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who holds that personal data and to what use it is being subjected, and, on the other hand, the power to oppose that possession and uses."

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It should also be noted that, in accordance with the provisions of Article 7.2 of the LOPDGDD, the processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship (...)

In light of the above, it is not established that the capture of the image that is the subject of the complaint submitted to this Agency had the consent of the complainant, who should have provided it since their child is a minor under fourteen years of age. On the contrary, there is a statement from the mother of the minor, who was 12 years old at the time of the events, whose image was captured, stating that when asked about their consent to be photographed, they denied having given it.

On the other hand, due to its relevance to the case at hand, let us also recall that Article 84 of the LOPDGDD - Protection of Minors on the Internet - states that minors must use digital devices and information society services in a balanced and responsible manner in order to ensure the proper development of their personality and to preserve their dignity and fundamental rights.

This provision, in its paragraph 2, states the following:

2. The use or dissemination of images or personal information of minors on social networks and equivalent information society services that may involve an unlawful intrusion into their fundamental rights will determine the intervention of the Public Prosecutor's Office, which will request the precautionary and protective measures provided for in Organic Law 1/1996, of January 15, on the Legal Protection of Minors.

In this same line, and in consideration of the special attention and protection that the personal data of minors deserve, Article 92 of the LOPDGDD - Protection of Minors' Data on the Internet - provides the following:

Educational centers and any natural or legal persons who carry out activities involving minors shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social network services or equivalent services, it must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law.

In short, we are faced with a legal framework that, in general terms, establishes that any processing of personal data requires a legitimizing basis to be considered lawful and, on the other hand, establishes mechanisms for reinforced guarantees when the processing of personal data refers to and/or affects minors.

In accordance with the aforementioned and in line with the proven facts resulting from the processing of this warning procedure, it is considered that the party complained against, by capturing the image in which the complainant's child, aged 12 at the time of the events, is identified, without the consent of their parents, and its subsequent distribution through their Instagram profile, has carried out a processing of personal data for which they are responsible and for which they do not have a basis for legitimization.

IV

Classification and Qualification of the Infraction

It is considered that the known facts constitute an infraction, attributable to the party complained against, according to the provisions of Article 6 of the GDPR, transcribed in the previous section. This infraction is classified in Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: (...) a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72.1 b) of the LOPDGDD, which qualifies the following conduct as very serious:

b) The processing of personal data without any of the conditions for lawful processing established in

Article 6 of Regulation (EU) 2016/679 being met.

V

Conclusion

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

It should be noted in this regard that the warning is configured as one of the powers granted by the GDPR to the Supervisory Authorities and that, although it lacks a sanctioning nature, it does have a corrective nature in the sense of allowing the consideration of the unlawfulness of a conduct, being able to achieve its correction and preventing a new commission of that possible infringing conduct in the future. And this, with full respect for the exceptional nature that the sanctioning procedure must have and, in the present case, considering that the party complained against was 13 years old at the time of the events.

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the facts, allowing for a balance between a possible lack of capacity to achieve full awareness regarding the unlawfulness of the conduct carried out and the importance of conveying the scope of one's own behaviors, such as the one that has been the subject of the complaint filed.

Furthermore, it should not be forgotten that, due to the significant impairment of privacy and the right to the protection of personal data resulting from the dissemination of personal information via the Internet, with a particularly relevant impact, due to their vulnerability, in the case of minors, the events that have occurred require a response from this Spanish Agency for the Protection of Data, in accordance with the powers attributed to it and the authorities at its disposal.

For all these reasons, in the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the indicated article.

Thus, in accordance with the applicable legislation and assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to G.G.G. with NIF ***NIF.3, parent and, therefore, legal representative of B.B.B., with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested party.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for the Protection of Data, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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